Records Retention & Disposal Schedule for Non-Government Schools

INTRODUCTION AND GUIDELINES FOR USE

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1. Purpose

The purpose of this Records Retention and Disposal Schedule for Non-Government Schools (the Schedule) is to enable regular, planned and authorised disposal of all records typically created by any non-government school.

2. Background

This Schedule has been redeveloped from an earlier version (2007) published by the Australian Society of Archivists. The requirement for review of the previous Schedule arose from changes to legislation, findings and recommendations from government inquiries into institutions with a duty of care for children, revised and new industry standards and changed community expectations.

This Schedule reflects minimum standards nationwide, in response to the above factors, and having compared equivalent retention and disposal instruments for government schools across all Australian states and territories.

3. Scope

This Schedule covers the following levels of education:

- Pre-school
- Early childhood learning
- Primary education
- Secondary education
- Special education
- International Baccalaureate programs

This Schedule covers records of predecessor schools, for example, where existing schools are amalgamated into another school.

This Schedule does not cover:

- Higher educational institutions
- Any functions of government departments of education
- Any functions of curriculum and assessment, or registration authorities.

4. Application

This Schedule applies to records and objects in different formats including those listed below.

- Records in any format, e.g. hardcopy, digital, digitised and multi-media.
- Records in business systems, other formal systems and informal systems, copies of records and parts of records.
- Records or objects from, or belonging to the school and those donated (permanently) to the school primarily from past students and staff. Use the relevant subject for sentencing records/documentary material, and use 'Objects' for sentencing physical artefacts. Decisions about collecting/acquiring such material should be made according to the school's collection development policy.
- Source records (e.g. hardcopy) that have been digitised – see s.6.4 for guidance about disposal of digitised records.

5. Design of the Schedule

5.1 Format & licensing

This Schedule is available in PDF and Excel formats. The PDF Schedule is the authoritative copy. The Excel Schedule contains locked data cells, as well as columns that enable schools to enter their own information. It can also be manipulated to display different views of the data (e.g. list of all classes that are 'permanent').

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5.2 Structure

This Schedule is structured and numbered in an hierarchical way, under high-level functions typical of all schools. Some schools may perform some, but not all functions listed. The structure comprises:

Five fixed columns:

Level 1: High-level function – with a description of what is covered under each function

> Level 2: A major (disposal) class – with a description of what it covers

> Level 3 and sometimes Level 4: sub classes – with descriptions of what they cover

The last column contains the disposal action to be taken for each sub-class, including permanent retention.

Three editable columns:

- Examples of records. Some examples are included, and these can be modified and added to, to suit each school's context
- Custody – for recording where the records are located (e.g. person's office, building, off-site storage)
- Record Owner – for recording which role or business area is responsible for the records of each activity. (For example, this can be used for securing the formal approval for any destruction of records, or for clarifying the context or use of records.)

The descriptions in Levels 1-4 also identify any exclusions or exceptions, and refer to other classes that should be used instead.

5.3 Disposal Action

Under 'Disposal Action', the retention period for temporary records is the recommended minimum period before the records should be destroyed. The retention period is calculated after a trigger event such as 'destroy x years after date of birth', 'destroy x years after agreement expires', 'destroy x years after action completed', 'destroy when reference ceases', etc.
'Destroy x years after action completed' means the record/s can be destroyed 'x' years after work has been completed on a specific activity. For example: after a careers advice program has been delivered; after the arrangements for an excursion or visit have been completed; after a curriculum review had been finalised, etc. If the Disposal Action is 'destroy 7 years after action completed', and a matter is finalised but then reactivated for any reason within the 7 years, then the time period starts again from the time the action is completed for the later/ second time.

'Destroy when reference ceases' means the record/s can be destroyed when there are no further business needs to refer to those records into the future.

Under some the descriptions of some classes, there is an instruction to 'use the relevant topic'. Consider the subject that the record relates to. For example, if a parent complaint or question was about a contract the school was entering into, then go to 'Governance – Agreement/Contracts'. If it was about their child being disciplined, then go to 'Student Management – Behaviour'.

6. Guidance for Implementation

6.1 Retention

Temporary retention periods are the recommended minimum, however records can be kept longer if a school wishes to do so.

Reasons for longer retention could include:

- business needs
- directives by the school or from a peak industry body
- if an internal or external investigation or inquiry is in progress
- legal requirements such as current, pending or potential legal action
- relevance of the records to an investigation or inquiry which is in progress
- records are subject to an information access application
- records are subject to a disposal freeze.

In these cases all relevant records must be identified and retained until all actions are completed.

6.2 Access

Schools need to ensure that records, irrespective of format, will remain accessible for the designated retention period. That is, the information contained within a record is available, retrievable and readable for the life of the record.

Access provisions are not covered in this Schedule, but will be subject to a school's privacy policy (under the *Privacy Act 1998*) and documented procedures for providing access for internal or external purposes.

Recommendations are made throughout the Schedule for some student-related records to be retained for long periods (see notes below on STUDENT MANAGEMENT). This is based on the following assumptions:

- Personal information about students and their parents/guardians is collected for the purpose of providing education and wellbeing for students and satisfying the school's legal obligations (e.g. reporting, financial management).
- The school's duty of care for its students extends beyond their period of enrolment, and beyond an arbitrary period of seven years after they turn 18 (which is common in many past and outdated guidelines or instruments).
- The personal information may be needed by the individual long after the student has left the school, and may be used to defend claims (e.g. abuse), to provide support for ongoing or later medical conditions, to provide evidence to support employment requirements, or to trace family and identity.
- The personal information is still needed for a purpose that allows it to be used or disclosed under the Australian Privacy Principles.

Given the above, schools retaining personal information must take reasonable steps to ensure that such information is protected from misuse, modification, unauthorised access or disclosure. Steps may include:

- Good governance (including policy and procedures), culture and training around good recordkeeping
- Strong ICT and access securities to personal information and recordkeeping systems, including around cloud-based systems
- Methods to mitigate and respond to data breaches
- Timely and irretrievable disposal of records, including backups
- Regular monitoring of, and reporting on the operation of recordkeeping systems.[1]

The Australian Psychological Society's Code of Ethics and recordkeeping guidelines[2] recommend that school psychologist's records are to be retained at least until the child reaches 25 years old. Retention is also to be in consideration of the legal requirements of individual States and Territories, including the Retention and Disposal Schedules issued under the respective Public Records Acts (or equivalent). The ownership, and therefore disposal of psychologist's records will vary depending on the employment or engagement relationship between the psychologist and the school. This will affect the school's right to retain or dispose of those records. Regardless of the ownership of the records, the responsibility for privacy and confidentiality of patient/client information remains an obligation of the psychologist and the school.

6.3 Notes for Specific Classes

The ADMINISTRATION function is a high-level compilation of classes from Retention and Disposal Schedules for government jurisdictions. You can use this class, which may result in keeping some records for longer than necessary. Alternatively, you can use the Retention and Disposal Schedule for Common Administrative Records from the State or Territory Archives/ Records Office within your jurisdiction.

Throughout the functions of STUDENT MANAGEMENT and TEACHING AND LEARNING there are different disposal sentences for information relating to individual students.

A class called 'STUDENT MASTER RECORD' is summary information for individual students, covering a range of activities relating to their education, care and welfare. A summary may be in the form of a comprehensive database (e.g. a student information system) of information about a student and their time at the school. For older records it may be one or more hardcopy registers, indexes or similar.

The recommendation is that if summary information is maintained for any one, some, or all of the categories of information listed within STUDENT MASTER RECORD, then that summary information is to be retained:

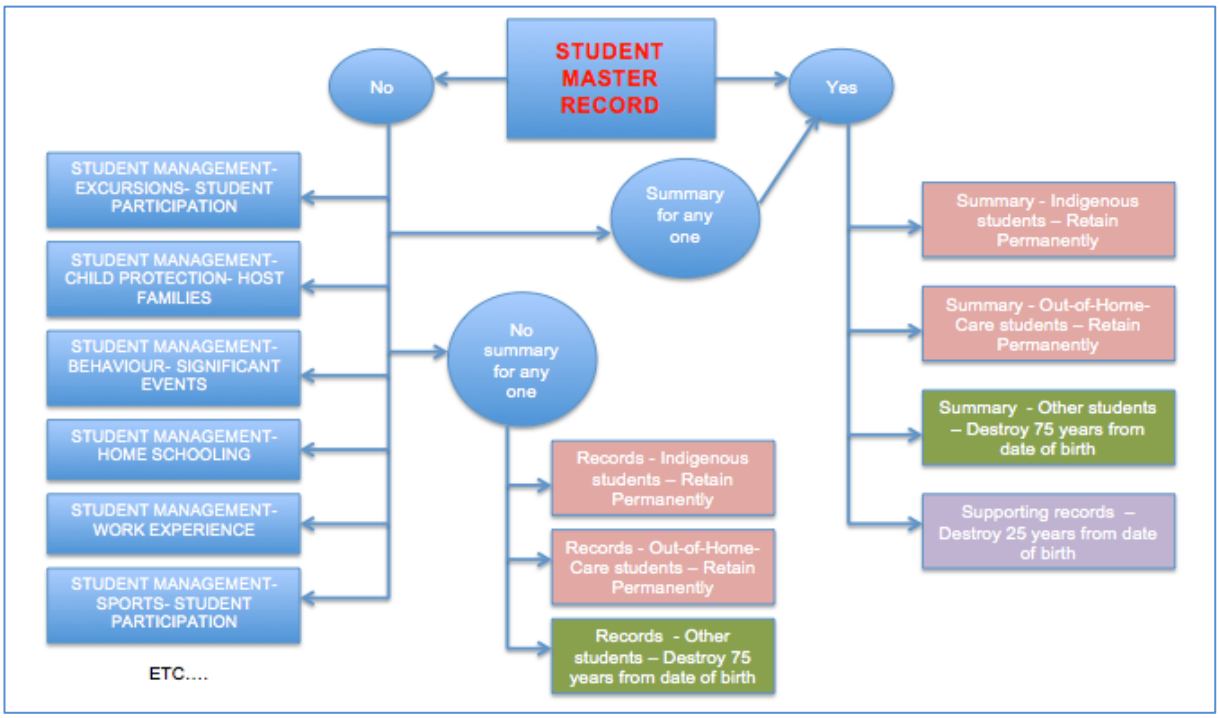
- permanently for indigenous students
- permanently for students who have lived in out-of-home-care
- for 75 years from date of birth for all other students.

The supporting records can then be destroyed 25 years from date of birth.

[1] Summarised from: Office of the Information Commissioner, *Australian Privacy Principles guidelines*, 2014, revised as at 31 March 2015.
[2] Australian Psychological Society: *Code of Ethics,* 2007; *Psychologist's records: Management, ownership and access*, 2012.

Figure 1 shows how to determine which retention period to apply.

Figure 1: Retention of Student Master Record



If summary information is <u>not maintained</u> for any one, some, or all of the categories of information listed within STUDENT MASTER RECORD, then the original records of the activity are to be retained:

- permanently for indigenous students
- permanently for students who have lived in out-of-home-care
- for 75 years from date of birth for all other students.

There may be summaries for some activities, e.g. student participation in excursions, in which case, the summary is retained long-term, and supporting records kept for a shorter period.

These recommendations are in keeping with:

- Recommendations, requirements of, and findings from the Royal Commission into Institutional Responses to Child Sexual Abuse (RCIRCSA) [3]
- Records Retention and Disposal Schedules and other policies issued under the public records legislation of various jurisdictions, specifying indefinite, long-term, or permanent retention of student information[4]

[3] *RCIRCSA Consultation Paper: Records and recordkeeping practices,* Sept 2016. *RCIRCSA Final Report, Volume 8, Recordkeeping and information sharing*, 2017, in particular Recommendation 8.4, Principle 4: 'records relevant to child sexual abuse should be subject to minimum retention periods that allow for delayed disclosure of abuse by victims, and take account of limitation periods for civil actions for child sexual abuse'.

[4] E.g. National Archives of Australia's 2012 "disposal freeze on…records which may be required in evidence by the Royal Commission and any subsequent actions by the Australian Government": http://www.naa.gov.au/information-management/managing-information-and-records/disposal/freezes/index.aspx#section6. The freeze applied to Commonwealth Government entities, but was also recommended for State and Territory governments and the not-for profit and private sectors. See also: State Records of South Australia, *GDS 22 Disposal Schedule - Public Primary and Secondary Schools*, 21-06-2016, p.11; Queensland State Archives, *Education and Training Sector retention and disposal schedule* (draft) as *at 05-04-2017, p.43.*

- Recommendation 21 of the Bringing Them Home report relating to indigenous or other children removed from their family[5]
- Recommendations from a range of peak organisations to the RCIRSCA regarding records of care leavers and Aboriginal and Torres Strait Islander children[6]
- Findings of other inquiries relating to the care and welfare of children[7]
- Limitation periods for civil actions concerning child sexual abuse being abolished by the jurisdictions, and recommended for all jurisdictions by the RCIRCSA
- Access to school records by indigenous people, or people who have lived in out of home care as part of their search for their origins, culture, identity and history, and which may be done by successive generations.

The EPHEMERA class refers to material of an ephemeral or transitory nature created, acquired or collected by staff in the routine course of their work. For example:

- transitory or short term items, e.g. phone messages, notes, office notices and circulars
- drafts, rough working papers or notes created in the preparation of official records and not intended for further use or reference
- duplicate copies of material used for reference purposes only
- published material which does not form an integral part of a school record.

6.4 Digitised Records

This Schedule covers records that have been digitized, by regular scanning on demand, or as a retrospective back-scanning project.

Each State and Territory Records Office has detailed standards and advice for government bodies regarding the retention or destruction of hardcopy records after they have been digitized. Such advice can be used as a benchmark for whether and how the school wishes to destroy past hardcopy records that have been scanned.

Scanned hardcopy records will be subject to different retention periods, depending whether they are permanent or temporary. Common practice is:

- For permanent records, the source (hardcopy) record is retained in storage for the required length of time, as well as the scanned version.
- For temporary records, the source (hardcopy) record is usually destroyed within six months of scanning to allow for any problems detected in quality control.

General requirements for scanning permanent and temporary records are:

- A risk assessment has been carried out on the risks the organisation incurs in converting (digitising) the records. The school may wish to gain experience on low-risk conversions before attempting large-scale high-risk conversions.
- A full and accurate copy of the source record has been created.

[5] *Bringing Them Home: Report of the National Inquiry into the Separation of Aboriginal and Torres Strait Islander Children from Their Families. April 1997. p. 655;* Recommendation of the RCIRCSA Final Report, vol 8, 'State and territory governments should ensure that non-government schools operating in the state or territory are required to comply, at a minimum, with standards applicable to government schools in relation to the creation, maintenance and disposal of records relevant to child safety and wellbeing, including child sexual abuse'.

[6] E.g. *Submissions to the Royal Commission into Institutional Responses to Child Sexual Abuse, Consultation paper: Records and recordkeeping practices*: Victorian Aboriginal Child Care Agency - December 2016; Care Leavers Australasia Network – Dec 2016.

[7] E.g. *Protecting Victoria's Vulnerable Children Inquiry* 2012.

- That is:
  - all content is captured, e.g. all pages (including both sides, if applicable, loose notes, sticky notes, etc)
  - the content accurately reflects the source record.
- The context of the record is fully and accurately captured, e.g. date of the record, title and other metadata.
- The scanning process meets minimum standards for digitisation, including quality control (see jurisdictional standards).
- The digitised record becomes the official record.
- The digitised record is managed in a system that is designed to ensure access for the full retention period of the record.
- The source record does not have value, in itself, as a physical artefact.
- There is no requirement imposed upon the school by legislation, regulation, government policy/directive, agency policy, standard, or other direction that the source record be retained in a specific format.
- The source records are not on loan from a donor.

6.5 Sentencing Records

Sentence records with this Schedule using the following steps:

- Determine the appropriate function and activity of the records. This can be done by examining an existing record or when creating a new record.
- Identify the disposal class.
- From the disposal action in the class, identify the trigger event and a date when the record can be disposed of, or alternatively, identify that the record is to be retained permanently.
- If the trigger event has already occurred (such as action is completed), confirm that the disposal date is still accurate and implement the disposal action.
- If the trigger event has not occurred (e.g. the record is still in active use), set a review date for the future.
- If a record is reactivated after a retention period has commenced, the time must be recalculated from the date of the (subsequent) last action.
- Where a record contains information that falls into two or more disposal classes, use the disposal class with the longest retention period.
- Consult with the relevant operational area responsible for the records, and obtain documented agreement from a senior representative that the records can be destroyed.
- Destroy records in a secure manner that ensures complete deletion/destruction beyond any possible reconstruction.
- Keep a record (e.g. report) of all records destroyed.
- Implement an appropriate strategy for retaining permanent records, e.g. preservation of records in their original form; migration of records to new systems; and conversion of records to a long-term format.

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Disclaimer

This Retention and Disposal Schedule is intended to guide licensed users in decision making about retention and disposal of commonly occurring records in non-government schools. Its content is not intended to constitute legal or other professional advice or to be a substitute for such advice. Australian Society of Archivists Inc. and Enterprise Knowledge Pty Ltd shall not be liable or held responsible and disclaim responsibility for any omissions, acts done by others consequent upon reliance upon this schedule.

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Note: this is a selection of resources referred to in the development of the RRDS; it is not a comprehensive list.

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